

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403534	WEATHERS vs PALMER	MOTION TO SET ASIDE DEFAULT JUDGMENT

Tentative Ruling:

The Motion to Set Aside the Dismissal as to Defendants, JUNELYN MELON PALMER, JI LIPARDO, and GARY PALMER is granted. The Court confirms that the Proof of Service for each named Defendant was filed with the Court on 3/5/2026, four days prior to the Court dismissing the matter for Failing to file a Proof of Service on all Defendants pursuant to CRC 3.110(b)&(f). As for the remaining Defendants, HAKEEM ODULATE and AYODALE ODULATE the matter remains dismissed for failure to file a proof of service.

Defendants to file a responsive pleading.

The Court sets the matter for a Case Management Conference on 9/22/2026 at 8:30 a.m. in Dept. 6.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507445	MADRID vs TOYOTA MOTOR SALES U.S.A. INC.	DEMURRER ON COMPLAINT
CVRI2507445	MADRID vs TOYOTA MOTOR SALES U.S.A. INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Moving party: Defendant Toyota Motor Sales, U.S.A., Inc. et al.
Responding party: Plaintiffs Anthony Madrid and Loreto Madrid

This lemon law action arises from Plaintiffs' Anthony Madrid and Loreto Madrid May 27, 2022 purchase of a 2022 Toyota Tundra (the "Vehicle") for which Defendant Toyota Motor Sales, U.S.A., Inc. (or "Toyota") issued an express warranty. Plaintiffs allege the Vehicle contains defects and nonconformities that manifested during the applicable express warranty period. The Complaint alleges Toyota was aware and knew of the defects prior to Plaintiff acquiring the Vehicle but failed to disclose this fact to Plaintiff at the time of the lease and thereafter. Ford has failed to replace the Vehicle or promptly make restitution.

The operative Complaint asserts the following causes of action:

1. Violation of Subdivision (d) of Civil Code section 1793.2